

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Frank Montgoris	Team: Squad #07	CCRB Case #: 201707468	☐ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Sunday, 09/03/2017 12:52 AM	Location of Incident: Outside of § 87(2)(b)	18 Mo. SOL 3/3/2019	Precinct: 43
Date/Time CV Reported Sun, 09/03/2017 1:00 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 09/11/2017 4:24 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Anthony Santoli	03550	957132	043 PCT
2. SGT Andrew Marino	5409	943521	043 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Channelle Hunter	12607	956750	043 PCT
2. POM Aaron Solomon	20668	963285	043 PCT
3. POM Nicholas Dalia	21242	958466	043 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Andrew Marino	Discourtesy: Sergeant Andrew Marino spoke discourteously to § 87(2)(b) and § 87(2)(b)	A . Unsubstantiated
B . POM Anthony Santoli	Discourtesy: Police Officer Anthony Santoli spoke discourteously to § 87(2)(b) and § 87(2)(b)	B . Unsubstantiated

Case Summary

§ 87(2)(b) filed this complaint with IAB via phone on September 3, 2017, on behalf of herself and five other individuals. The CCRB received this complaint on September 11, 2017.

On September 3, 2017, at approximately 12:52 a.m., officers from the 43rd Precinct responded to § 87(2)(b), in the Bronx, for a dispute. Sgt. Andrew Marino allegedly spoke discourteously to § 87(2)(b) and § 87(2)(b) when he demanded that the civilians not call him back to the location in the future (**Allegation A: Discourtesy, unsubstantiated**). Later, PO Anthony Santoli, also of the 43rd Precinct, allegedly spoke discourteously to the above-mentioned individuals (**Allegation B: Discourtesy, unsubstantiated**). No arrests or summonses resulted from this incident, and no video footage exists for this case.

Findings and Recommendations

Allegation A – Discourtesy: Sergeant Andrew Marino spoke discourteously to § 87(2)(b)

§ 87(2)(b) and § 87(2)(b)

It is undisputed that § 87(2)(b) and an unidentified female individual, who was the girlfriend of § 87(2)(b)'s brother, § 87(2)(b), were involved in a dispute. It is also undisputed that all parties wanted the unidentified individual to leave the location.

§ 87(2)(b) alleged that her daughter, § 87(2)(b) called the police because she heard § 87(2)(b) the tenant who rents out the third floor of her house, in an argument with § 87(2)(b) girlfriend. When Sgt. Marino and PO Nicholas Dalia arrived, Sgt. Marino went inside to attempt to speak to § 87(2)(b)'s brother, § 87(2)(b). Sgt. Marino came back downstairs, and yelled at § 87(2)(b) and her family, who were all outside. § 87(2)(b) could not definitively recall Sgt. Marino's exact statement, but noted that Sgt. Marino said, in sum and substance, "This fucking guy don't open the door for us. You guys don't fucking call us back anymore," "You guys are assholes," "You fucking assholes. Don't call us back anymore," or "That fucking guy slammed the door on me" (Board Review 01).

§ 87(2)(b) alleged that, after Sgt. Marino came back outside, he yelled, "Don't call us again, assholes. Don't fucking call us if this is what's going to happen. Don't bother us with this bullshit." § 87(2)(b) alleged that, after coming back outside, Sgt. Marino stated, "If you guys don't need any help, then don't call us, you assholes." In a brief phone statement, § 87(2)(b) § 87(2)(b)'s other daughter, denied that Sgt. Marino used any profanity, instead stating, "If you want to slam the door in my face, don't call us." § 87(2)(b) failed to cooperate with the investigation to provide an in-person statement, and § 87(2)(b) § 87(2)(b)'s niece, was ultimately unavailable (Board Reviews 02, 03, and 04).

§ 87(2)(b) § 87(2)(b)'s boyfriend, and § 87(2)(b) who were both present and provided brief phone statements, both alleged that Sgt. Marino used profanity upon coming back outside the residence. § 87(2)(b) alleged that Sgt. Marino told the individuals in the vicinity, "Don't call us if you guys want to act like assholes." § 87(2)(b) alleged that Sgt. Marino went upstairs to speak to § 87(2)(b) but he had slammed the door in Sgt. Marino's face. Upon coming back downstairs, Sgt. Marino stated, "Fuck that. We're getting out of here. I don't have to take this shit." Both § 87(2)(b) and § 87(2)(b) however, were ultimately uncooperative with the investigation's attempts to obtain in-person statements from them (Board Reviews 06 and 07).

Sgt. Marino testified that he went upstairs to speak to § 87(2)(b) who then shut the door on him upon seeing him. Sgt. Marino decided he was going to leave the location since § 87(2)(b) did not want to talk, and went back downstairs. Sgt. Marino did not recall whether he used any variation of the word “fuck” upon coming back outside, and did not recall whether he ever called or otherwise referred to the civilians on scene as “assholes.” Sgt. Marino did not recall using any profanity during the incident, noting that it was “possible” he told the civilians not to call him back to the location (Board Review 08).

Neither PO Santoli nor PO Aaron Solomon § 87(2)(g) was present on scene at the time the discourtesies were alleged to have occurred. PO Santoli, who spoke to Sgt. Marino upon arriving later on, that Sgt. Marino’s voice was raised during the incident and his demeanor was “authoritative.” PO Solomon had no recollection of this incident (Board Reviews 09 and 10).

§ 87(2)(g)

§ 87(2)(g)

As a result, it is recommended that **allegation A** be closed as **unsubstantiated**.

Allegation B – Discourtesy: Police Officer Anthony Santoli spoke discourteously to § 87(2)(b)

§ 87(2)(b) and § 87(2)(b) alleged in her in-person statement that, upon arriving to the location, PO Santoli spoke to Sgt. Marino about what had happened prior to his arrival. After speaking to Sgt. Marino, PO Santoli said out loud, in the vicinity of § 87(2)(b)’s family, “You guys don’t fucking call us back here anymore” (Board Review 01).

§ 87(2)(b) alleged in a phone call that she had believed PO Santoli had used profanity towards § 87(2)(b) because she observed § 87(2)(b) upset, but could not recall any discourteous statements (Board Review 02). § 87(2)(b) alleged in her in-person statement that, after speaking to Sgt. Marino, PO Santoli said to everyone, “If you guys don’t need any help, then don’t call us, you assholes.” In a brief phone statement, § 87(2)(b)

§ 87(2)(b) alleged that PO Santoli told her family, “Don’t call us again,” and ended the statement with some variation of profanity. However, though she believed PO Santoli said the word “dumbass,” she was ultimately unsure. As previously discussed, § 87(2)(b) was ultimately uncooperative in providing a sworn statement, and § 87(2)(b) was unavailable to the investigation (Board Reviews 03, 04, and 14).

Neither § 87(2)(b) nor § 87(2)(b) heard PO Santoli use any profanities towards any civilians on scene (Board Reviews 06 and 07).

PO Santoli testified that, while speaking to the multiple civilians on scene, his voice was raised because everyone was yelling. However, he denied saying either of the alleged phrases, and denied using any profanity during the incident (Board Review 09).

Sgt. Marino denied hearing PO Santoli use any profanity during the incident. PO Solomon, who did not recall this incident, also denied hearing PO Santoli use any profanity (Board Reviews 08 and 10).

§ 87(2)(g)

As a result, it is recommended that **allegation B** be closed as **unsubstantiated**.

Mediation, Civil, and Criminal Histories

- This case was eligible for mediation, but both § 87(2)(b) and § 87(2)(b) declined to mediate.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- A Notice of Claim request was submitted with the New York City Comptroller’s Office on December 12, 2017. That request is still pending, as of the writing of this report (Board Review 12).

Civilian and Subject Officer CCRB Histories

- This is the first CCRB complaint for § 87(2)(b) and § 87(2)(b) (Board Review 05).
- Sgt. Marino has been a member of the NYPD for ten years. Sgt. Marino has been the subject of one prior allegation stemming from Case #201310535, in which a force allegation against him was unsubstantiated.
- PO Santoli has been a member of the NYPD for three years. PO Santoli does not have any prior allegations against him.

Investigator: _____ Inv. Frank Montgoris _____

Squad Leader: _____ IM Diana Townsend _____

Reviewer: _____